

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-007
Amendments to Title 17 of the Chickasaw Nation Code
(Failure to Register)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal jurisdiction and criminal offenses, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

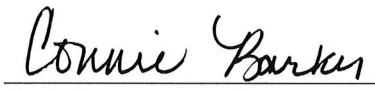
BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 2, Article A, Section 17-201.15(A) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-201.15 **FAILURE TO REGISTER.**

A. It shall be unlawful for a Sex Offender to fail to register in any jurisdiction or update current information. ~~If Convicted, such offense shall carry a maximum penalty of incarceration of not more than one (1) year, or a civil penalty of not more than Five Thousand Dollars (\$5,000), or both.~~ Failure to Register shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000.00), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 15, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 15 2023

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Explanation:

This resolution amends the punishment for Failure to Register from a misdemeanor to a felony.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature